

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

EARL HORTON,

Respondent

) Case Number: FCS-14-349893

) Hearing Date: May 28, 2026

) Hearing Time: 1:30 PM

) Department: 414

) Presiding: MUJDAH RAHIM

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Other Parent Indira Carranza Navarro (“Mother”) and Respondent Earl Horton (“Father”).
- 2) The parties have two children, Kimberly Nevaeh Horton, age 12, and Gianni Isabella Carranza, age 4.
- 3) On March 13, 2026, Mother filed a Request for Order for Change of Custody and Visitation. She is requesting sole legal and physical custody of the minor children. With respect to parenting time, Mother requests that Father have visitation every Saturday from 9:00 a.m. to 8:00 p.m.
- 4) The current custody order awards parties joint legal and physical custody. Under the current order, Father’s parenting time is from Thursday at 9:00 a.m. to Sunday at 9:00 a.m.
- 5) Mother seeks modification of the current custody and visitation order based on concerns regarding Father’s living situation, possible drug use, and his failure to consistently exercise his parenting time. Specifically, Mother sates that Father frequently asks her to pick up the children early on Thursdays, which she reports occurs approximately two to three times per month.

1 Mother further alleges that Father is habitually late returning the children on Sundays, which
2 interferes with Mother's and the children's ability to attend church services.

3 6) A valid proof of service for Mother's Request for Order is on file.

4 7) Father has not filed a Response to Mother's Request for Order.

5 8) The parties had separate mediation appointments and did not reach an agreement.

6 9) At the Readiness Hearing, on April 13, 2026, the parties stipulated to the matter being heard by
7 Commissioner Mujdah Rahim, and the matter was continued to May 28, 2026, at 1:30 p.m. in
8 Department 414.

9 10) The Court notes that San Francisco Department of Child Support Services (SF DCSS) is a party
10 to this action. However, given child support is not at issue, SF DCSS's appearance is not required
11 for purposes of this proceeding.

12 **B. Findings and Order**

13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act.

15 2) The parties have two children together, Kimberly, age 12, and Gianni, age 4.

16 3) Based on the evidence presented, the Court finds that it is in the child's best interest to order as
17 follows:

18 4) Mother's request for sole legal and physical custody is DENIED without prejudice. The Court
19 finds that Mother did not meet her burden for the Court to grant her request.

20 5) As to Father's parenting time, the Court orders his visitation from Thursday at 9:00 a.m. to
21 Saturday 8:00 p.m.

22 6) Father is ordered to provide and maintain appropriate beds for the minor children in his home.

23 7) The parties may not consume alcoholic beverages, narcotics, or restricted dangerous drugs
24 (except by prescription) within 24 hours before or during periods of time with the children.

25 8) All prior orders not in conflict with this order remain in effect.

26 9) The Court will prepare the Findings and Order After Hearing.
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